

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

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LEROY GRANT,

Plaintiff,

**FIRST AMENDED
COMPLAINT AND
JURY DEMAND**

-against-

15 CV 5005 (FB)(JO)

THE CITY OF NEW YORK,
Police Officer RENE CASTELLANO, Shield No.
2610, Police Officer ALEJANDRO VILLALONA,
Shield No. 25443, Police Officer JASON SMITH,
Shield No. 16576, Police Officer JAMES
SCHUESSLER, Shield No. 26718, Police Officer
NELSON REYES, Shield No. 27556, Lieutenant
SAMUEL HERRERA, Police Officer JOHN DOE
FOUR through FIVE in their individual and official
capacities as employees of the City of New York,

Defendants.

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The Plaintiff, LEROY GRANT, by his attorney, the Rameau Law Firm,
alleges the following, upon information and belief for this Complaint:

INTRODUCTION

1. This is a civil rights action for money damages brought pursuant to 42 U.S.C. §§ 1981, 1983, and 1988, the Fourth and Fourteenth Amendments of the United States Constitution, Article I Sections 6, 11, and 12 of the Constitution of the State of New York, and the common law of the State of New York, against the police officers mentioned above in their individual capacities, and against the City of New York.

2. It is alleged that the individual police officer defendants made an unreasonable seizure of the person of plaintiff, violating his rights under the Fourth, Eighth and Fourteenth Amendments to the United States Constitution. It is further alleged that these violations and torts were committed as a result of policies and customs of the City of New York.

3. Plaintiff seeks compensatory and punitive damages, affirmative and equitable relief, an award of attorneys' fees and costs, and such other relief as this Court deems equitable and just.

4. Plaintiff filed a Notice of Claim on or about August 29, 2014.

5. At least thirty days have elapsed since the service of the notice of claim, and adjustment or payment of the claim has been neglected or refused.

6. This action has been commenced within one year and ninety days after the happening of events upon which the claims are based.

JURISDICTION

7. This Court has subject matter jurisdiction over the federal claims pursuant to 28 U.S.C. §§ 1331 and 1343. Plaintiff also asserts jurisdiction over the City of New York under 28 U.S.C. §§ 1331 and 1367. Plaintiff requests that this Court exercise pendent jurisdiction over any state law claims arising out of the same common nucleus of operative facts as plaintiff's federal claims.

VENUE

8. Under 28 U.S.C. § 1391(b) and (c) venue is proper in the Eastern District of New York.

PARTIES

9. Plaintiff was at all material times a resident of the City of New York, New York, and of proper age to commence this lawsuit.

10. Defendant Police Officer RENE CASTELLANO, Shield No. 2610 ("Castellano"), at all times relevant herein, was an officer, employee and agent of the NYPD. Defendant Castellano is sued in his individual and official capacities.

11. Defendant Police Officer Castellano at all relevant times herein, either directly participated or failed to intervene in the violation of plaintiff's rights.

12. Defendant Police Officer ALEJANDRO VILLALONA, Shield No. 25443 ("Villalona"), at all times relevant herein, was an officer, employee and agent of the NYPD. Defendant Villalona is sued in his individual and official capacities.

13. Defendant Villalona at all relevant times herein, either directly participated or failed to intervene in the violation of plaintiff's rights.

14. Defendant Police Officer JASON SMITH, Shield No. 16576 ("Smith"), at all times relevant herein, was an officer, employee and agent of the NYPD. Defendant Smith is sued in his individual and official capacities.

15. Defendant Smith at all relevant times herein, either directly participated or failed to intervene in the violation of plaintiff's rights.

16. Defendant Police Officer JAMES SCHUESSLER, Shield No. 26718 ("Schuessler"), at all times relevant herein, was an officer, employee and agent

of the NYPD. Defendant Schuessler is sued in his individual and official capacities.

17. Defendant Police Officer Schuessler at all relevant times herein, either directly participated or failed to intervene in the violation of plaintiff's rights.

18. Defendant Police Officer NELSON REYES, Shield No. 27556 ("Reyes") at all times relevant herein, was an officer, employee and agent of the NYPD. Defendant Reyes is sued in his individual and official capacities.

19. Defendant Reyes at all relevant times herein, either directly participated or failed to intervene in the violation of plaintiff's rights.

20. Defendant Lieutenant SAMUEL HERRERA ("Herrera") at all times relevant herein, was an officer, employee and agent of the NYPD. Defendant Herrera is sued in his individual and official capacities.

21. Defendant Herrera at all relevant times herein, either directly participated or failed to intervene in the violation of plaintiff's rights.

22. At all times relevant herein, defendants John Doe Four through Five were acting as agents, servants and employees of defendant City of New York and the NYPD. Defendants John Doe Four through Five are sued in their individual and official capacities.

23. Defendant Police Officers John Doe Four through Five, at all relevant times herein, either directly participated or failed to intervene in the violation of plaintiff's rights.

24. Defendant officers were at all times relevant to this complaint duly appointed officers of the police department of the City of New York, acting under color of law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of the State of New York and/or the City of New York.

25. The City of New York (hereinafter “The City”) is, and was at all material times, a municipal corporation duly organized and existing pursuant to the laws, statutes and charters of the State of New York. The City operates the N.Y.P.D., a department or agency of defendant City responsible for the appointment, training, supervision, promotion and discipline of police officers and supervisory police officers, including the individually named defendants herein.

26. The City was at all material times the public employer of defendant officers named herein.

27. The City is liable for the defendant officers’ individual actions pursuant to the doctrine of “respondeat superior.”

FACTUAL ALLEGATIONS

28. Plaintiff is a 62 year old African-American male.

29. On or about July 28, 2014, at approximately 9pm, plaintiff was in his van dropping off his grandson at the Broadway Junction subway stop.

30. Defendants falsely stopped him and unlawfully searched his van.

31. Defendants then falsely arrested plaintiff and charged him with destroying or removing property.

32. Defendant CASTELLANO lied in the criminal complaint as she stated she observed plaintiff on a public sidewalk pushing a shopping cart containing piping, wiring, radiators and wood beams.

33. Plaintiff was in his van at the time he stopped and was not pushing a shopping cart.

34. Plaintiff was then taken to the 73rd Precinct.

35. At the precinct, the officers falsely informed employees of the Kings County District Attorney's Office that they had observed plaintiff committing a crime he did not commit.

36. At no point did the officers observe plaintiff committing any crimes or offenses.

37. Ultimately plaintiff was taken from the police precinct to Brooklyn Central Booking.

38. All charges against plaintiffs were false.

39. On July 29, 2014, plaintiff accepted an adjournment in contemplation of dismissal ("ACD") to resolve his criminal case.

40. At all times during the events described above, the defendant police officers were engaged in a joint venture. The individual officers assisted each other in performing the various actions described and lent their physical presence and support and the authority of their office to each other during the said events.

41. Defendant officers acted maliciously and intentionally, and said acts are examples of gross misconduct. They acted with reckless and wonton disregard for the rights, health, and safety of the plaintiff.

42. The conduct of the defendant officers in falsely arresting the plaintiff directly and proximately caused physical and emotional injury, pain and suffering, mental anguish, humiliation and embarrassment. All of the events complained of above have left permanent emotional scars that the plaintiff will carry with him for the remainder of his life.

43. All of the above was done in violation of state and federal law.

44. As a direct and proximate result of the said acts of the defendant officers, the plaintiff suffered the following injuries and damages:

- i. Violation of his constitutional rights under the Fourth, Eighth and Fourteenth Amendments to the United States Constitution to be free from unreasonable search and seizure of his person;
- ii. Loss of his physical liberty;
- iii. Physical pain and suffering and emotional trauma and suffering, requiring the expenditure of money for treatment;

45. The actions of the defendant officers violated the following clearly established and well settled federal constitutional rights of plaintiff:

- i. Freedom from the unreasonable seizure of his person;

COUNT ONE
42 U.S.C. § 1983
False Arrest/False Imprisonment
Against Individual Defendants

46. Plaintiff repeats and realleges each and every allegation above as if fully set forth herein.

47. Plaintiff claims damages for the injuries set forth above under 42 U.S.C. § 1983 against defendant officers for violation of his constitutional rights under color of law.

48. Defendant officers falsely arrested plaintiff.

49. As a direct and proximate result of the misconduct and abuse of authority detailed above, plaintiff sustained the damages herein alleged.

COUNT TWO
Assault and Battery
Against City of New York

50. Plaintiff repeats and realleges each and every allegation above as if fully set forth herein.

51. Defendant officers assaulted and battered plaintiff.

52. The City of New York as the employer of the individual defendants is liable to plaintiff for their assault and battery on him.

53. As a direct and proximate result of this assault and battery, plaintiff suffered the damages herein alleged.

COUNT THREE
False Arrest and False Imprisonment
Against City of New York

54. Plaintiff repeats and realleges each and every allegation above as if fully set forth herein.

55. By their conduct, as described herein, the City of New York as the employer of the individual defendant officers is liable to plaintiff for falsely arresting and falsely imprisoning plaintiff.

56. Plaintiff was conscious of the confinement.

57. Plaintiff did not consent to the confinement.

58. Plaintiff's confinement was not otherwise privileged.

59. As a direct and proximate result of this assault and battery, plaintiff suffered the damages herein alleged.

COUNT FOUR
42 U.S.C. § 1983
Against Defendant City

60. The plaintiff incorporates by reference the factual allegations set forth above as if fully set forth herein.

61. Prior to the date of the incident alleged herein, the City of New York developed and maintained policies or customs exhibiting deliberate indifference to the constitutional rights of persons in New York, which caused the violation of plaintiff's rights.

62. It was the policy and/or custom of the City of New York to inadequately and improperly investigate citizen complaints of widespread, systemic police misconduct, and such acts of misconduct have instead been allowed by the City of New York.

63. It was the policy and/or custom of the City of New York to inadequately supervise and train its police officers, including the defendant officers, thereby failing to adequately discourage further constitutional violations on the part of its police officers. The City of New York did not require appropriate in-service training or re-training of officers who were known to have engaged in police misconduct.

64. The effects of any in-service training and re-training of officers known to have engaged in police misconduct were wholly negated by the rampant culture of misconduct and impunity sanctioned by the command structure of the New York City Police Department and City of New York.

65. As a result of the above described policies and customs, police officers of the City of New York, including the Defendant Officers, believed that their actions would not be properly monitored by supervisory officers and that misconduct would not be investigated or sanctioned, but would be allowed.

66. The above described policies and customs demonstrated a deliberate indifference on the part of policymakers of the City of New York to the constitutional rights of persons within the City, and were the cause of the violations of plaintiff's rights alleged herein.

COUNT FIVE
Respondeat Superior Liability
Against the City of New York

67. The plaintiff repeats and realleges each and every allegation above as if fully set forth herein.

68. The conduct of defendant officers occurred while they were on duty, under the color of law, in and during the course and scope of their official duties and functions as duly sworn New York City police officers, and while they were acting as agents and employees of the City of New York and the NYPD, and as a result the defendants City of New York and the NYPD are liable to the plaintiff pursuant to the doctrine of respondeat superior.

69. As a direct and proximate result of this misconduct and abuse of authority detailed above, plaintiff sustained the damages herein alleged.

COUNT SIX
Negligent hiring/Training/Retention of Employment Services
Against Defendant City

70. Plaintiff repeats and realleges each and every allegation above as if fully set forth herein.

71. Defendant City, through the NYPD, owed a duty of care to plaintiff to prevent the conduct alleged, because under the same or similar circumstances a reasonable, prudent, and careful person should have anticipated that injury to plaintiff or to those in a like situation would probably result from the foregoing conduct.

72. Upon information and belief, all of the Individual Defendants were unfit and incompetent for their positions.

73. Upon information and belief, defendant City knew or should have known through the exercise of reasonable diligence that the Individual Defendants were potentially dangerous.

74. Upon information and belief, defendant City's negligence in screening, hiring, training, disciplining, and retaining these defendants proximately caused each of plaintiff's injuries.

75. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

COUNT SEVEN

Failure To Intervene

76. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

77. Those defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity prevent such conduct, had a duty to intervene and prevent such conduct and failed to intervene.

78. Accordingly, the defendants who failed to intervene violated the First, Fourth, Fifth And Fourteenth Amendments.

79. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

COUNT EIGHT

Denial Of Constitutional Right To Fair Trial Against the City of New York

80. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

81. The individual defendants created false evidence against Plaintiff.

82. The individual defendants forwarded false evidence to prosecutors in the Kings County District Attorney's office.

83. In creating false evidence against Plaintiff, and in forwarding false information to prosecutors, the individual defendants violated Plaintiff's constitutional right to a fair trial under the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

84. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

COUNT NINE

Malicious Abuse of Process

85. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

86. The individual defendants issued legal process to place Plaintiff under arrest.

87. The individual defendants arrested Plaintiff in order to obtain collateral objectives outside the legitimate ends of the legal process, to wit, to cover up their assault of him.

88. The individual defendants acted with intent to do harm to Plaintiff without excuse or justification.

89. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

PRAYER FOR RELIEF

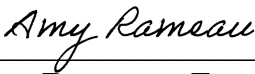
WHEREFORE, plaintiff requests that this Court:

- (a) Award compensatory damages against the defendants, jointly and severally;
- (b) Award punitive damages against the individual defendants, jointly and severally;
- (c) Award costs of this action to the plaintiff;
- (d) Award reasonable attorneys' fees and costs to the plaintiff pursuant to 28 U.S.C. § 1988;
- (e) Such other and further relief as this Court deems just and proper.

JURY DEMAND

Plaintiff hereby demands a jury trial.

DATED: January 4, 2016
Brooklyn, New York



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